

underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 850.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In the instant matter, the court first finds that the Declaration, submitted by the Plaintiff, is admissible under the Business Records exception to hearsay. Mr. Denmark declared that he was familiar with the record keeping practice of US Bank, and that the records were kept in the ordinary course of business and generated at or about the time of event occurrence.

However, there is no evidence about whether Defendant agreed to the purported terms and conditions. Though Plaintiff provides a copy of the terms, in their Exhibit A to the Declaration, and the Declaration indicates that the Defendant's use of the credit card is an act of acceptance of the terms, there is no evidence that these terms were provided to Defendant. Other than the document with Defendant's name and address at the top, there is no statement from Mr. Denmark showing that it is the custom and practice of US Bank to mail these terms to the Defendant upon receiving Defendant's application.

Plaintiff does not make a *prima facie* showing of the existence of a contract.

Disposition

The Court finds and orders as follows:

1. The MSJ is DENIED.
2. Court will prepare the Order.

9. 9:00 AM CASE NUMBER: L25-08444

CASE NAME: CAPITAL ONE N.A. VS. YEVGENIYA KOSHTA

*HEARING ON MOTION IN RE: MOTION UNDER CCP 454 TO PRECLUDE PLN ACCT EVIDENCE OR ALT

COMPEL FURTHER ACCT FILED BY DEF ON 4/3/26

FILED BY: KOSHTA, YEVGENIYA

***TENTATIVE RULING**

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Defendant filed a Motion to Preclude Plaintiff's Account Evidence, on 4/3/26.

The Motion is unopposed, but there is no evidence that Defendant provided notice of the Motion to the Plaintiff.

Disposition

This Motion will be continued to 9/22/26, 9am.

Defendant to file Order, and to provide notice of Motion and of hearing to Plaintiff.

**10. 9:00 AM CASE NUMBER: L25-10803
CASE NAME: WELLS FARGO BANK, N.A. VS. VICTORIA MIGUEL
HEARING ON SUMMARY MOTION
FILED BY: WELLS FARGO BANK, N.A.**

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Background

Plaintiff filed a Motion for Summary Judgment (the "MSJ"), along with a Declaration of Charles Brophy, a Separate Statement of Undisputed Material Facts, and a Memo of Costs. The Motion and supporting documents are unopposed.

Plaintiff timely served Defendant via mail service on the address for Defendant provided in the Answer.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no